

The Claremont City Council held a meeting on Wednesday, September 13, 2017, in the Council Chambers of City Hall.

The meeting was called to order by Assistant Mayor Damren at 6:30 p.m.

Members of the Council present were:

Ward II Councilor Scott Pope
Assistant Mayor Allen Damren
At-Large Councilor Bruce Temple
Ward III Councilor Nicholas Koloski
At-Large Councilor John Simonds

Absent:

Ward I Councilor Carolyn Towle
At-Large Councilor Keith Raymond
Mayor Charlene Lovett

Also present:

Ryan McNutt, City Manager

AGENDA CHANGES

None

REPORT OF THE SECRETARY

A motion was made by Mr. Simonds and seconded by Mr. Pope to accept the minutes of the August 9, 2017, City Council meeting.

Voice vote: motion carried 5-0.

A motion was made by Mr. Simonds and seconded by Mr. Damren to accept the minutes of the August 23, 2017, City Council meeting.

Voice vote: motion carried 5-0.

MAYOR'S NOTES

Mr. Damren thanked Rebecca MacKenzie for coordinating the Time of Reflection event (stand up against racism, anti-Semitism and Islamophobia) in Broad Street Park. 150-200 people attended. Mr. Damren read a statement from Mayor Lovett, on behalf of the Council, into the

record extending thoughts and prayers for the eight-year-old boy that was injured a few weeks ago.

Mr. Damren read statements from Mayor Lovett:

- Saturday, September 9, Habitat for Humanity held a block party at the JSL building where information was given out on how to repair homes. Thank you to the Fire Department for bringing its equipment to the event
- Friday, September 15, 3:30 p.m., Legislative workshop in Council Chambers
- Tuesday, September 26, 6:30 p.m.-8:00 p.m., CSB Community Center, there will be a public forum to discuss a welcome depot, Claremont Amtrak Ad Hoc Committee will host
- September 28, 6:30 p.m., Sugar River Valley Regional Technical Center, there will be a joint meeting of the Council and School Board

Mr. Damren talked about the Council meeting to interview candidates for the vacant Council seat. The meeting had been posted for September 18, but according to the Council minutes, the meeting date was supposed to be September 21. After discussion, it was agreed the meeting would be held on September 21.

Mr. Damren asked Councilors to send questions for the applicants to Ms. Russell no later than noon tomorrow.

Mr. Koloski recommended not sending the questions to the whole Council in order to not have to make them public.

Mr. Damren listed some dates in September to remember:

- 15th, 3:30 p.m. Legislative workshop
- 21st, 6:30 p.m. Candidate interviews
- 26th, 6:30 p.m.-8 p.m. CSB Community Center to discuss a welcome depot at the Claremont train station
- 28^t, 6:30 p.m. Joint Council and School Board meeting at Sugar River Valley Regional Technical Center (SRVRTC)

Mr. Koloski added some other September events:

- 16th Claremont Brewfest, Visitors Center Green
- 21st, 2-4 p.m., Congresswoman Kuster at SRVRTC
- 17th All Out Mountain Bike Race, Moody Park

Mr. Koloski said today he was invited by the SAU to join the kids for school lunch at Maple Avenue School. The kids were very welcoming. He got to see the healthy options including the salad bar. He thanked the SAU office. He said all Councilors are invited to join the students for lunch.

CITY MANAGER'S REPORT

Mr. McNutt talked about the August 28th event where an eight-year-old boy was injured. He said we need to heal as a community. We need to send love to the boy that was hurt. There has been a lot of misinformation spread by out-of-staters. NH laws are very protective of children under the age of 18 years old regardless if they are the victim or not. The Claremont Police Department has responded with the utmost seriousness, but there are restrictions regarding talking about it. The State of NH has investigated and determined there was no fault found with the Claremont Police Department. It is now in the Court's hands. Mr. McNutt expressed support and satisfaction with the work done by our Police Chief. He said the Claremont Police Department took this incident seriously and they have done a thorough investigation.

Mr. McNutt said the highway aid (SB38), approximately \$277,000, will be used to increase the amount of Main Street to be paved and to pave some of the outside right lanes of Washington Street from Arrowhead Motors to the old K-Mart.

Mr. McNutt said the Whitewater culvert work would start next week.

Mr. Damren echoed his support for the Police Chief.

Scott Sweet, Public Works Director, said Main Street paving will go from Elm Street to just across from Lambert Supply. He is hopeful that the North and Main Project will start next spring. Mr. McNutt said the delay is because the state has to complete its work.

APPOINTMENT TO BOARDS AND COMMITTEES

Tax Increment Finance District Advisory Board – Downtown

A motion was made by Mr. Pope and seconded by Mr. Simonds to re-appoint Robert Porter to seat 4 of the Tax Increment Finance District Advisory Board – Downtown.

Voice vote: motion carried 5-0.

CITIZEN'S FORUM

None

OLD BUSINESS

Ordinance 557 Naming of City-owned Property – First Reading

The purpose of this proposed change is to establish procedures and criteria for naming city-owned property, including streets.

Enactment of this Ordinance will revise Chapter 16, by adding a new Article V, Naming of City-Owned Property.

Mr. Pope said all the changes that the Committee was asked to do have been done. Several communities were looked at and a lot of them don't have this kind of ordinance.

A motion was made by Mr. Pope and seconded by Mr. Simonds to adopt Ordinance 557 Naming of City-owned Property on first reading.

Voice vote: motion carried 5-0.

NEW BUSINESS

Motion to Accept \$5,000 from Kiwanis toward Imagination Playground Fund - Public Hearing

Mark Brislin, Parks and Recreation Director, said one of the things missing from the CSB Community Center (CSBCC) is something for younger children to participate in. Imagination Playground is made up of large foam blocks and children use their imagination for open play and learning. Kiwanis is a great supporter of the CSBCC. He expects this to be in place by mid-October. He said Kiwanis and CSB Foundation will provide funding.

A motion was made by Mr. Koloski and seconded by Mr. Pope that after a public hearing duly noticed, the Claremont City Council hereby accepts with sincere appreciation the donation of \$5,000 from the Kiwanis Claremont Charities toward the Imagination Playground Fund.

Mr. Damren opened the public hearing. No one spoke. He closed it.

Voice vote: motion carried 5-0.

Mr. Brislin said the check will be presented to the City at the Brewfest on September 16th.

Resolution 2018-7 NH Dept. of Safety MDT Grant of \$14,000 for Police Department - Public Hearing

The City of Claremont, New Hampshire has applied for and been awarded a New Hampshire Highway Safety Mobile Data Terminal (MDT) Grant (Grant #310-17A-095) in the amount of \$14,000.00 for the period ending September 30th, 2017 and would like to accept and expend the grant funds for their intended purpose;

Police Chief Mark Chase said this is for the MDT (mobile data terminals) that are in the cruisers. The current ones were installed in 2011. They are dated and aged. This grant pays up to \$2,000 per MDT with matching funds. The matching funds were encumbered from last year's budget.

Mr. McNutt said this was on the Fleet & Equipment CIP, so he will check this off as completed.

Chief Chase said he hopes the new ones will last 6-7 years.

A motion was made by Mr. Koloski and seconded by Mr. Simonds to adopt Resolution 2018-7 NH Dept. of Safety MDT Grant of \$14,000 for Police Department.

Mr. Koloski read the resolution into the record.

Mr. Damren opened the public hearing. No one spoke. He closed it.

Roll call vote: motion carried 5-0.

Resolution 2018-8 Grant to Upgrade the Airport's Stormwater Pollution Prevention Plan
– Public Hearing

The City is undertaking the project to update the Stormwater Pollution Prevention Plan at the Claremont Municipal Airport (the "Airport"), which is required by federal regulations. The City has applied for and been notified that it has been awarded a grant from the Federal Aviation Administration (the "FAA") in the amount of \$8000.00 to fund the Update of the Stormwater Pollution Prevention Plan at the airport, said amount including \$400.00 from the New Hampshire Department of Transportation and local matching funds from the City in the amount of \$400.00. The City would like to now accept and expend said grant funds. That the City Council hereby accepts the FAA grant (Project SBG-02-09-2017 – Update Stormwater Pollution Prevention Plan) in the amount of \$8000.00, including monies from the New Hampshire Department of Transportation. This is to raise and appropriate the sum of \$400.00, as the City's share of the project, to be taken from the Airport Reserve Account (to have no impact on the tax rate).

Fire Chief Rick Bergeron this is to fund an update of the Stormwater Pollution Prevention Plan. It is required to be updated at regular intervals.

A motion was made by Mr. Temple and seconded by Mr. Simonds to adopt Resolution 2018-8 Grant to Upgrade the Airport's Stormwater Pollution Prevention Plan.

Mr. Temple read the resolution into the record.

Mr. Damren opened the public hearing. No one spoke. He closed it.

Roll call vote: motion carried 5-0.

Ordinance 556 Control Open-Burning in the City – First Reading

The purpose of this proposed change is to establish procedures and a permitting system to the Claremont City Code regarding outside fires, other than those related to gas or charcoal grills, heating devices or uses related to construction or maintenance activities.

Enactment of this Ordinance will revise Chapter 6, Fire Codes & Enforcement by adding provisions to establish procedures and a permitting system to regulate open burning within the City limits.

Chief Bergeron gave a history of problems with neighbors burning trash in outside incinerators. At some point, the state outlawed burning of trash in outside incinerators. Around that time the Fire Department created a No Burn Zone which was in place until 2015. The state has relaxed the campfire laws. In 2015, the City changed its policy and tied burn permits to zones and clearances. Now we need to codify those rules. Zones are listed on the City's website or you can go to the Fire Department.

Mr. Temple asked if someone in the Bluff area would be able to have a 24-inch fire ring in their backyard. Chief Bergeron said probably not. They would need to meet certain distances. Once issued, the permits are good for the calendar year. Information will be placed on the City's website.

A motion was made by Mr. Simonds and seconded by Mr. Pope to adopt Ordinance 556 Control Open-Burning in the City on first reading.

Voice vote: motion carried 5-0.

Ordinance 558 Hogback Road One-way – First Reading

The purpose of the proposed change is to amend Section 19-121, One-Way Streets, is hereby amended to add the following location: Hogback Road, from its intersection with Route 120 to Red Water Brook Road.

Scott Sweet, Public Works Director, said there are a lot of close calls for vehicles on this road. He has sent certified letters to abutters notifying them of this request. It is a narrow road with a knoll in the center, so you can't see vehicles coming in the other direction. The abutters agreed it should be a one-way. The Traffic Advisory Committee met and agreed that it should be changed to a one-way from Route 120 to Red Water Brook Road. It's a safety issue. He will notify abutters of the public hearing.

A motion was made by Mr. Temple and seconded by Mr. Pope to adopt Ordinance 558 Hogback Road One-way on first reading.

Mr. Temple read the ordinance into the record.

Voice vote: motion carried 5-0.

Property Tax Exemption for Commercial and Industrial Businesses

Mr. Damren said that Mayor Lovett had included information in the Council packet regarding a property tax exemption for commercial and industrial businesses. If the Council were to approve the program, it would apply to new construction for a maximum of 10 years. He said he and Mayor Lovett agree there is a need to have this discussion for economic development reasons.

Mr. Koloski asked if there is a timeline to follow or an urgency to adopt this. Mr. Damren said no.

Mr. Koloski asked if the City Administration is prepared with a proposal. Mr. Damren said no. Mr. Damren said that he and Mayor Lovett are hoping to have a proposal with the pros and cons at the second September meeting. This is to begin the discussion.

A motion was made by Mr. Koloski to table the discussion. There was no second, so the motion failed.

Mr. Pope said it is important to have the House Bill and the RSA in front of Council. He asked if this would give a tax break on new construction for existing businesses.

Mr. McNutt said this is a premature discussion. He is not ready to bring this to Council. He and Planning and Development Director Nancy Merrill are reviewing it. There are a lot of broad implications.

Mr. Temple asked if this included the state portion of the property taxes. Mr. Damren said it is for the local portion (school and city/town portion). Mr. Temple said this has an impact on the schools and a direct impact on property owners. He said he hated to lose business to adjoining communities because they offer tax breaks. He suggested checking with Coos County to see how it is working for them.

After discussion, Councilors agreed that presenting this in October would be fine.

Mr. Damren said he and Mayor Lovett don't feel rushed about this. It is important for the Council to discuss this. He referenced some articles and studies that said this is not good in the long term. He said the idea was to get the discussion started.

COMMITTEE REPORTS

Mr. Damren said the Finance Committee will meet on September 26, 7 p.m., at the CSB Community Center. Continuing emphasis is on re-writing and further developing the City's unassigned fund balance policy. After the Finance Committee approves that policy, it will go to the Policy Committee and then to the Council. The Finance Committee will discuss a proposal regarding the reserve fund levels for the water and sewer.

FUTURE AGENDA ITEMS AND DIRECTIVES

Mr. Pope urged inviting the Governor to visit Claremont. The Governor needs to see the many good things happening in our community, not just the recent bad.

Mr. Pope said he would like to get together with all four of the State Representatives on a regular basis. He would like legislative updates. He said it is critical for the Council to become involved.

Mr. Temple asked about the status of the survey of Moody Park.

Mr. Temple asked about the status of the land swap with Mr. MacGlaflin.

Mr. Temple talked about the water rates that were raised in 2010 and whether or not the new rates are adequate to cover the bills. He said we need to have that discussion.

Mr. Koloski said he has heard from a citizen that he is concerned about the condition of the grounds at the former Staples. Also, Mr. Koloski noticed the former Rite Aid hasn't been mowed. There are phone numbers on those buildings. Mr. McNutt said he will follow up. Staples' lease has expired and they are looking for new tenants.

Mr. Koloski said he will not be able to attend the meeting on the 15th. 3:30 p.m. is too early.

Mr. Koloski gave a reminder that the Mayor needs to make an appointment to fill the Council seat on the Claremont Planning Board. He said he was going to the Fire Academy from Tuesday to January 4th, so he will not be able to fill the full seat on the Planning Board.

Mr. Koloski would like an update on the staffing levels at the Fire Department and what that means for the community.

Mr. Koloski said Mrs. Brown called again regarding the Elderly Tax Exemption and she asked if we will look at it again.

Mr. Simonds asked about the health insurance change and how it affects Merit Plan employees. Mr. McNutt said he can provide an update to the Council. Mr. Simonds wants to know the coverages. Mr. McNutt said the Clerical Union had taken the City to arbitration over healthcare and the City said that this is comparable. It has gone through arbitration and the City was upheld.

Mr. Damren said regarding the 3:30 p.m. time for this Friday's meeting that Mayor Lovett said this was the only time she could get all involved together.

CONSULTATION WITH LEGAL COUNSEL

None

ADJOURNMENT

At 8:12 p.m., a motion was made by Mr. Temple and seconded by Mr. Pope to adjourn.

Voice vote: motion carried 5-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council